

26. Income of gift absolute in form but liable to be defeated.—The corresponding section in Lord Cranworth's Act, the wording of which was very similar, was held not to apply to the case of a gift absolute in the first instance but liable to be defeated in the event of the legatee not attaining twenty-one. In such a case the accumulations of income were held to belong to the infant's estate notwithstanding his death under age (*b*). It may be doubted whether that case was not intended to be covered by the enactment, but it does not fall within the strict letter of it, and no distinction can be drawn in this respect between the language of the corresponding sections in Lord Cranworth's Act and the recent Act.

27. Income of contingent gift.—Where the infant was entitled contingently on his attaining twenty-one, or on some event before his attaining that age, to a legacy carrying interest in the meantime, the power of maintenance in Lord Cranworth's Act applied (*c*), as does also the power under the recent Act; but where a further contingency is involved in the gift, as in addition to attaining twenty-one the contingency of surviving a particular person, the case does not come within the sections of either of the Acts, and neither the trustees nor the Court can apply the income for maintenance, and there is no obligation to accumulate (*d*).

28. Another question which arises under this section is, whether an infant is entitled to maintenance out of the income of property to which he is entitled contingently on his attaining twenty-one, where, independently of the section, the infant could never have become entitled to the income; as for instance in the case of a pecuniary legacy given by a person not the parent or *loco parentis* to an infant contingently on his attaining twenty-one. This question is not free from difficulty having regard to the state of the law prior to the recent enactment and to the language of the section. By Lord Cranworth's Act where an infant was contingently entitled to property, the trustees were empowered to apply towards the maintenance and education of

[*(b)* *Re Buckley's Trusts*, 22 Ch. D. 583.]

[*(d)* *Re Judkin's Trusts*, 25 Ch. D. 743.]

[*(c)* *Re Cotton*, 1 Ch. D. 232.]